



File No.: EXP202408479

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of the communication from the Catalan Data Protection Authority (APDCAT) regarding a report from the Mossos d'Esquadra (...), this Agency is made aware of the possible existence of a security breach at ENERGY WINNER, S.L., with NIF B55344782, due to an attack on its systems and the possible exfiltration of personal data of clients.

Noticing indications of a possible breach of regulations within the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202314073.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD hereinafter).

In the framework of the investigative actions, a request for information was sent to ENERGY WINNER, S.L. seven times, requiring that, within twenty working days, it present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on all occasions in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

On three occasions, the request was sent electronically and was not collected by ENERGY WINNER, S.L. within the availability period, as evidenced by the acknowledgments of receipt in the file, understanding that the notifications were made, in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP, on the dates of October 30, 2023, December 31, 2023, and February 2, 2024.

On two occasions, dated November 25, 2023, and December 29, 2023, the request was sent by postal mail and returned to sender by unknown at C/ Jorge Juan, 6, according to the acknowledgments of receipt in the file, despite being sent the first time to the tax address of ENERGY WINNER, S.L. provided by the State Agency for Tax Administration and the second time to an address provided by ENERGY WINNER, S.L. on September 18, 2023, with entry registration number REGAGE23e00062347735, in the framework of another file.

Finally, on two other occasions, dated January 22, 2024, and March 4, 2024, the request was delivered by postal mail to the registered office of ENERGY WINNER, S.L. as listed in the Commercial Registry, as evidenced by the acknowledgments of receipt in the file.

FOURTH: On February 23, 2024, with entry registration number REGAGE24e00014217682, a document was received in which ENERGY WINNER, S.L. states that "in relation to file EXP202314073, we inform you that we cannot respond to your questions as we are not aware of this fact, and we have no record of having been victims of any attack of this nature."

FIFTH: Following the response received, a new request for information was sent to ENERGY WINNER, S.L. twice, requiring that, within ten working days, it present to this Agency the information and documentation specified, related to its operational work and the processing of personal data it carries out.

This request, which was notified on both occasions in accordance with the rules established in the LPACAP, was delivered by postal service to the registered office of ENERGY WINNER, S.L. on April 3, 2024, and May 10, 2024, as evidenced by the acknowledgments of receipt in the file.

SIXTH: Regarding the requested information, ENERGY WINNER, S.L. has not submitted any response to this Spanish Agency for Data Protection.

SEVENTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ENERGY WINNER, S.L., for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by ENERGY WINNER, S.L. on August 22, 2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from ENERGY WINNER, S.L. Article 64.2.f) of the LPACAP -provision of which ENERGY WINNER, S.L. was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to ENERGY WINNER, S.L.

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and the sanction that could be imposed. Therefore, considering that ENERGY WINNER, S.L. has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

NINTH: According to the report obtained from the AXESOR tool, the entity ENERGY WINNER, S.L. is a SME (Microenterprise), established in 2019 with a share capital of (...), and in the fiscal year 2022 had a turnover of (...).

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: The information request indicated in the fifth antecedent was notified on two occasions in accordance with the provisions of the LPACAP.

SECOND: ENERGY WINNER, S.L. has not responded to the information request mentioned in the fifth antecedent, which was made by this Agency within the framework of the investigation proceedings of file EXP202314073, within the deadlines granted for this purpose.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the facts presented, it is considered that ENERGY WINNER, S.L. has not provided the information requested by the Spanish Agency for Data Protection.

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With the aforementioned conduct of ENERGY WINNER, S.L., the investigative power granted to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed. Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to ENERGY WINNER, S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions.”

III

Classification and qualification of the infringement

The facts presented are considered to constitute an infringement attributable to ENERGY WINNER, S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imputed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding section k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

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In light of the facts presented, it is deemed appropriate to impose a sanction on ENERGY WINNER, S.L. for the violation of Article 58.1 of the GDPR as classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 600.00 euros.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ENERGY WINNER, S.L., with NIF B55344782, for a violation of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 600 euros (SIX HUNDRED euros).

SECOND: TO ORDER ENERGY WINNER, S.L., with NIF B55344782, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requirements made in the framework of the proceedings numbered EXP202314073, to which reference has been made in the background of this resolution.

It is warned that failure to comply with the requirements of this agency may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to ENERGY WINNER, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for

reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that it must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024
Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es